

Court No. - 21

Case :- WRIT - C No. - 63028 of 2017

Petitioner :- Smt. Chhaya Gupta

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Arvind Kumar Srivastava

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Krishna Murari,J.

Hon'ble Ajay Bhanot,J.

Sri Baleshwar Chaturvedi, who has accepted notice on behalf respondent no. 2, prays for and is allowed two days' time to seek instruction in the matter.

Put up as fresh on 04.01.2018.

Till then no coercive action shall be taken against the petitioner in pursuance of the impugned recovery.

Order Date :- 2.1.2018

OP

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Respondent :- State Of U.P. And 2 Others

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Hon'ble Krishna Murari,J.

Hon'ble Ajay Bhanot,J.

Heard learned counsel for the petitioner and Shri K.K. Kesharwani holding brief of Shri Baleshwar Chaturvedi, learned counsel for respondent no. 2.

It is contended on behalf of the petitioner that she did not receive the copy of the provisional assessment notice and it was came to her knowledge only after the recovery certificate was issued and, as such, she could not submit her reply and in absence whereof, the respondent treated it to be final and issued recovery certificate.

Learned counsel for the petitioner has invited our attention to the contents of the notice dated 27.03.2017 as well as the provisions contained under Clause 6.8(b)(1) of the U.P. Electricity Supply Code, 2005. The argument is that the respondent-corporation while issuing the provisional assessment notice was required to fix a date in the notice itself for hearing so that the consumer could appear before the authority concerned on the date so specified.

From the perusal of the assessment order, it does not appear that any date was indicated in the notice for hearing in the matter and in such circumstances, the contention of the petitioner that notice itself was not in accordance with the requirement of law, appears to have substance.

This Court in the case of **Ashok Kumar & Ors. Vs. State of U.P. & Ors., 2008 (6) ADJ 660 (DB)** from paras 56 to 64, has considered the provisions of the Electricity Supply Code 2005 to be followed in a case of theft of electricity for assessment.

In the present case, we find that provisional assessment notice does not give the basis on which petitioner was assessed to pay Rs.3,97,468/-. The notice also does not specify the date for hearing, which was required under the Code.

In view of the fact that notice for provisional assessment issued to the petitioner itself was not in accordance with law, we are of the opinion that petitioner was not afforded adequate opportunity as provided in para 6.8(b) of U.P. Electricity Code, 2005.

Consequently, the writ petition is allowed. The impugned notice dated 27.03.2017 and the recovery citation dated 18.11.2017 are hereby quashed. The respondents are directed to prepare a fresh provisional assessment order and serve the same upon the petitioner. The final assessment order shall be made after considering petitioner's objection and opportunity of hearing, giving reasons to meet the objections of petitioner in the light of observations made in the case of **Ashok Kumar** (supra).

Order Date :- 4.1.2018

VKS